

SENATE BILL 2568

By Haile

AN ACT to amend Tennessee Code Annotated, Title 67,
relative to the sales and use tax.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-6-205(c), is amended by adding the following as a new subdivision:

(10) Advertising services purchased by or on behalf of a business entity that generates annual revenue in an amount equal to or greater than one hundred million dollars (\$100,000,000). For purposes of this subdivision (c)(10), "advertising" means any written, electronic, or printed communication for the purpose of promoting a brand, product, or service to the public in order to create an interest in the brand, product, or service, or induce a person to purchase or use a product or service and includes sponsorships and television, digital, radio, billboard, and print advertising.

SECTION 2. The Department of Revenue is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 3. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.